

Vishambar Dayal v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 10 December 2019 · Writ-C No. 40665 of 2019 · **Writ disposed; petitioner relegated to Clause 6.5; coercive action stayed six weeks.**

HEADNOTE

A writ seeking certiorari to quash a recovery certificate issued under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 will not be entertained where the consumer disputes only the correctness of the electricity bill. Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the statutory remedy. The consumer may approach the Executive Engineer; a short stay of coercive recovery was granted pending that course.

FACTUAL SUMMARY

Vishambar Dayal, a consumer of Dakshinanchal Vidyut Vitran Nigam Limited, filed a writ petition seeking certiorari to quash a recovery certificate dated 9 October 2019 issued under Section 5 read with Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958. His grievance was confined to the correctness of the electricity bill on which the recovery proceedings were founded.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill dispute; statutory remedy; recovery certificate

HOLDING

Where a consumer disputes the correctness of the electricity bill underlying a recovery certificate issued under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, the High Court will not entertain a writ petition because Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies the statutory remedy. The petitioner was left to approach the Executive Engineer within two weeks, to be decided by a speaking order after hearing within four weeks, and coercive action was stayed for six weeks. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy Writ to quash a 1958 Act recovery certificate founded on a disputed electricity bill was declined because Clause 6.5 requires the consumer to approach the Executive Engineer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND VALIDITY OF THE RECOVERY CERTIFICATE DATED 09.10.2019 ON THE MERITS

¶ 1